

Court No. - 29

Case :- WRIT - C No. - 25905 of 2019

Petitioner :- M/S Tenguria Cold Storage

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Vijay Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Amit Krishna

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent No.2 and with their consent we dispose of the writ petition without inviting any counter affidavit.

The petitioner has been served the recovery citation of Rs.13,69,598/- for realising the electricity dues.

The petitioner alleges that after the issuance of the said recovery citation the petitioner has deposited a substantial amount and as on date only a sum of Rs.5,89,000/- is outstanding against him.

It is admitted to the parties that the electricity of the petitioner which was disconnected has already been restored on payment of part of the amount as aforesaid.

Learned counsel for the petitioner submits that he is ready and willing to pay the remaining amount provided some reasonable time is allowed or instalments are fixed.

Clause 6.14 of the U.P. Electricity Supply Code, 2005 authorises the Executive Engineer concerned to grant instalment in such situations.

In view of the aforesaid provision, we consider it appropriate in the interest of justice to dispose of the writ petition with the direction to the petitioner to deposit a sum of Rs.89,000/- within a period of one month from today and the balance amount of Rs.5,00,000/- in five equal monthly instalments of Rs.1,00,000/- each payable in the month October, 2019, November, 2019, December, 2019, January, 2020 and February, 2020.

In the event of default in payment of any of the instalments the respondent would be free to recover the

amount in accordance with law and the benefit of this order would come to an end automatically. It goes without saying that in addition to depositing the aforesaid instalments with regard to the arrears of electricity dues, the petitioner would continue depositing the monthly electrical charges as per the bills raised.

Accordingly, the Writ Petition is **disposed off**.

Order Date :- 22.8.2019

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